



CHAPTER 49.

An Act to increase temporarily the supplementary allowances payable to workmen entitled to weekly payments by way of compensation under the Workmen's Compensation Act, 1925, and the compensation payable under that Act on the death of workmen; and for purposes connected with the matters aforesaid.

[11th November 1943.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Subsection (1) of section one of the Workmen's Compensation (Supplementary Allowances) Act, 1940, shall, as respects weeks falling within the period during which this Act is in force, have effect as if for the words—

Supplementary allowances.
3 & 4 Geo. 6.
c. 47.

- " (a) a supplementary allowance at a rate not exceeding five shillings a week; and
- (b) in the case of a male workman who has children under the age of fifteen years, a supplementary allowance in respect of each such child at a rate not exceeding four shillings a week for the eldest or only child under that age and for the second child under that age, and not exceeding three shillings a week for any additional child under that age "

there were substituted the following words—

- " (a) a supplementary allowance at a rate not exceeding five shillings a week in the case of a week falling within the first thirteen weeks in respect of which he is entitled to a weekly payment and not exceeding ten shillings a week in the case of any other week; and

- (b) in the case of a male workman who has a wife who was married to him at the time of the accident, a supplementary allowance in respect of her at a rate not exceeding five shillings a week in the case of any week falling within the first thirteen weeks in respect of which he is entitled to a weekly payment and not exceeding ten shillings a week in the case of any other week ; and
- (c) in the case of a male workman who has children under the age of fifteen years, a supplementary allowance in respect of each such child at a rate not exceeding five shillings a week ;

Provided that a child who,—

- (i) has attained the age of fifteen years ; and
- (ii) was, when he attained that age, a child receiving full-time instruction in a school,

shall be treated for the purposes of paragraph (c) of this subsection as if he did not attain that age until the date on which he ceases to be a child receiving full-time instruction as aforesaid or the thirty-first day of July next following the day on which he attains the age of sixteen years, whichever is the earlier date”.

(2) Subsection (2) of the said section one shall, as respects weeks falling within the period during which this Act is in force, have effect as if for the words “ Provided that the total amount of the supplementary allowances ” there were substituted the following words—

“ Provided that the supplementary allowance payable under paragraph (a) of subsection (1) of this section in respect of a weekly payment, or, where supplementary allowances are payable both under paragraph (a) and paragraph (b) of that subsection in respect of a weekly payment, the total amount of both those supplementary allowances, shall not exceed such sum as would, together with the said weekly payment, amount—

- (i) in the case of total incapacity, to two-thirds of the average weekly earnings of the workman before the accident, calculated in like manner as for the purpose of ascertaining the weekly payment ; or
- (ii) in the case of partial incapacity, to two-thirds of the difference between the amount of the said average weekly earnings of the workman before the accident and the average weekly amount which he is earning or is able to earn in some suitable employment or business after the accident,

so, however, that the amount payable shall not, by virtue of this proviso, be reduced below what it would have been if the foregoing provisions of this proviso had not applied and the said

paragraphs (a) and (b) had together provided for a single supplementary allowance, payable irrespective of sex or marriage, at a rate not exceeding five shillings a week ;

Provided also that the total amount of all the supplementary allowances "

(3) Accordingly, subsection (1) of the said section one and subsection (2) thereof (down to the end of the provisos) shall, as respects weeks falling within the period during which this Act is in force, have effect as set out in the Schedule to this Act

2.—(1) Section eight of the Workmen's Compensation Act, 1925 (which contains provisions as to the amount of the compensation under that Act when death results from the injury caused by an accident) shall, as respects any death occurring, while this Act is in force, as a result of an accident happening whether before or after the commencement of this Act, have effect as amended by this section. Lump sum payments.
15 & 16 Geo. 5.
c. 84.

(2) In subsection (1) (which provides, inter alia, that the lump sum and children's allowance payable shall not in any case exceed in the aggregate six hundred pounds) for the words "six hundred pounds" there shall be substituted the words "seven hundred pounds".

(3) In paragraph (i) of subsection (2) (which provides that if the workman leaves any dependants wholly dependent on his earnings the lump sum shall be a sum equal to his earnings in the employment of the same employer during the three years next preceding the injury, or the sum of two hundred pounds, whichever of those sums is the larger, but not exceeding in any case three hundred pounds) for the words "two hundred pounds" there shall be substituted the words "three hundred pounds" and for the words "three hundred pounds" there shall be substituted the words "four hundred pounds".

(4) In paragraph (iii) of subsection (2) (which provides, inter alia, for the deduction from the lump sum of the amount of the weekly payments, if any, made to the workman before his death, so, however, as not to reduce the lump sum below two hundred pounds) for the words "two hundred pounds" there shall be substituted the words "three hundred pounds".

3.—(1) Subsection (4) of section one of the Workmen's Consequential Compensation (Supplementary Allowances) Act, 1940 (which provides that workmen entitled to two or more concurrent weekly payments shall be entitled to supplementary allowances in respect of each of them, so long as the aggregate thereof does not exceed the maximum allowances respectively specified in paragraph (a) and paragraph (b) of subsection (1) of that section) shall, in relation to supplementary allowances the amounts whereof are calculated in accordance with section one of this Act, have effect as if for Provisions.

the words " paragraph (a) and paragraph (b) of subsection (1) of this section " there were substituted the words " paragraphs (a), (b) and (c) of subsection (1) of this section ".

(2) In subsections (2) and (3) of section two of the said Act (which require, in the case of the redemption of any supplementary allowances, that regard shall be had to the circumstances of the case including the interests of any children in respect of whom allowances are payable) and in subsection (1) of section three of the said Act (which, inter alia, enables information necessary for the purposes of the Act to be obtained from workmen as to any children in respect of whom allowances are claimed) for the words " any children " there shall be substituted the words " any wife or children ".

9 Edw. 7.
c. 49.

(3) Sections five, six and seven of the said Act (which require or enable amendments to be made to certified schemes and schemes applying to industrial diseases and to certain provisions of the Assurance Companies Act, 1909) shall have effect as if all the provisions of this Act were provisions of that Act :

Provided that any amendments made in pursuance of the said section five by reason of the passing of this Act shall, notwithstanding anything in subsection (2) of that section, have effect as from the commencement of this Act.

Duration of
Act.

4. This Act shall come into operation on the twenty-ninth day of November, nineteen hundred and forty-three, and shall continue in force until the thirty-first day of December, nineteen hundred and forty-six, and shall then expire :

52 & 53 Vict.
c. 63.

Provided that, on the expiry of this Act, subsection (2) of section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeals) shall apply as if this Act had then been repealed.

Short title
and citation.

5. This Act may be cited as the Workmen's Compensation (Temporary Increases) Act, 1943, and shall be included among the Acts which may be cited together as the Workmen's Compensation Acts, 1925 to 1943.

SCHEDULE.

Section 1.

PORTIONS OF SECTION ONE OF THE WORKMEN'S COMPENSATION (SUPPLEMENTARY ALLOWANCES) ACT, 1940, AS AMENDED BY SECTION ONE OF THIS ACT.

(1) Subject as hereinafter provided, where any workman is at any time while this Act is in force entitled to a weekly payment by way of compensation under the Workmen's Compensation Act, 1925 (which Act, as amended by any subsequent enactment, is referred to in this Act as "the principal Act"), he shall, whether the accident giving rise to the compensation happened before or after the commencement of this Act, be entitled, in respect of each week after the commencement of this Act in respect of which he is entitled to the weekly payment, to—

- (a) a supplementary allowance at a rate not exceeding five shillings a week in the case of a week falling within the first thirteen weeks in respect of which he is entitled to a weekly payment and not exceeding ten shillings a week in the case of any other week ; and
- (b) in the case of a male workman who has a wife who was married to him at the time of the accident, a supplementary allowance in respect of her at a rate not exceeding five shillings a week in the case of any week falling within the first thirteen weeks in respect of which he is entitled to a weekly payment and not exceeding ten shillings a week in the case of any other week ; and
- (c) in the case of a male workman who has children under the age of fifteen years, a supplementary allowance in respect of each such child at a rate not exceeding five shillings a week :

Provided that a child who,—

- (i) has attained the age of fifteen years ; and
- (ii) was, when he attained that age, a child receiving full-time instruction in a school,

shall be treated for the purposes of paragraph (c) of this subsection as if he did not attain that age until the date on which he ceases to be a child receiving full-time instruction as aforesaid or the thirty-first day of July next following the day on which he attains the age of sixteen years, whichever is the earlier date.

(2) Where the weekly payment is in respect of total incapacity or equals the amount which would be payable to the workman in the case of total incapacity resulting from the injury, any such allowance shall be the maximum allowance specified in the foregoing subsection, and in any other case shall bear the same proportion to the maximum allowance as the weekly payment bears to the amount of the weekly

payment which would be payable to the workman in the case of total incapacity :

Provided that the supplementary allowance payable under paragraph (a) of subsection (1) of this section in respect of a weekly payment, or, where supplementary allowances are payable both under paragraph (a) and paragraph (b) of that subsection in respect of a weekly payment, the total amount of both those supplementary allowances, shall not exceed such sum as would, together with the said weekly payment, amount—

- (i) in the case of total incapacity, to two-thirds of the average weekly earnings of the workman before the accident, calculated in like manner as for the purpose of ascertaining the weekly payment ; or
- (ii) in the case of partial incapacity, to two-thirds of the difference between the amount of the said average weekly earnings of the workman before the accident and the average weekly amount which he is earning or is able to earn in some suitable employment or business after the accident,

so, however, that the amount payable shall not, by virtue of this proviso, be reduced below what it would have been if the foregoing provisions of this proviso had not applied and the said paragraphs (a) and (b) had together provided for a single supplementary allowance, payable irrespective of sex or marriage, at a rate not exceeding five shillings a week ;

Provided also that the total amount of all the supplementary allowances payable in respect of any weekly payment shall not exceed such sum as would, together with the said weekly payment, amount—

- (a) in the case of total incapacity, to seven-eighths of the average weekly earnings of the workman before the accident, calculated in like manner as for the purpose of ascertaining the weekly payment ; or
- (b) in the case of partial incapacity, to seven-eighths of the difference between the amount of the said average weekly earnings of the workman before the accident and the average weekly amount which he is earning or is able to earn in some suitable employment or business after the accident.

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and
King's Printer of Acts of Parliament

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(P. 1804)